ROBERT KASENZA
versus
ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 5 May 2026

Opposed Application

T. Tembani, for the applicant
T. L. Marange, for the respondent

DEMBURE J: This is an opposed court application in terms of s 4 of the Administrative Justice Act [*Chapter 10:28*] as read with s 196 of the Customs and Excise Act [*Chapter 23:02*] and s 68 of the Constitution of Zimbabwe, 2013. The applicant seeks the relief that:

> "1. The decision of the Respondent dated 13 January 2025 be and is hereby set aside.
> 2. The matter be remitted back to the Respondent for reconsideration.
> 3. Each party bears its own costs."

On 13 March 2026, the court, after hearing argument from the counsels for both the applicant and the respondent, reserved judgment *sine die*.

FACTUAL BACKGROUND

On 15 September 2024, the applicant returned to the country as a returning resident from the United Kingdom. He went on to apply for an immigrant rebate, being the suspension of duty in respect of the motor vehicle he imported and alleged he had owned for at least six months before his arrival in Zimbabwe. The suspension of duty on motor vehicles imported by returning residents is provided for in the Customs and Excise (Suspension) (Amendment) Regulations, 2022 SI 10 of 2022 (*"the Regulations"*).

The applicant averred that on 10 February 2024, he purchased a motor vehicle, a Ford Kuda Titanium (*"the vehicle"*) through an instalment sale with a car dealership known as Grey

Wolf Auto Limited, which is in the United Kingdom. He further stated that he finished paying the instalments on 23 February 2024. He alleged that he paid a total of £1,750, comprising the purchase price of £1,700 and storage costs of £50. He alleged that he had decided to return to Zimbabwe permanently. The respondent's officials declined to grant him suspension of duty for the vehicle as a returning resident in terms of the Regulations. The basis for the denial was that he had not owned the vehicle for at least six months as required in terms of s 9NO(3)(a) of the Regulations.

The applicant challenged the decision through an internal appeal to the respondent's Regional Manager, explaining that he was entitled to a suspension of duty, but the Regional Manager upheld the station manager's decision. He further appealed to the respondent's Commissioner of Customs and Excise, who, on 13 January 2025, upheld the decision denying him the suspension of the import duty. The ground on which the decision was premised was that the applicant had not paid for the vehicle in full for at least six months at the time he applied for the said rebate.

The applicant contended that the respondent's decision dated 13 January 2025 was manifestly harsh, excessive, unreasonable, unlawful, and unfair. It was contended that the vehicle receipt indicated it was paid for in full, and the bank statements submitted as evidence of payment also showed he had paid for the vehicle in full on 23 February 2024. He further stated that, from 23 February 2024, notwithstanding that its registration was changed on 10 April 2024, he was the owner thereof, and that at the time he made an application, he had owned the vehicle for at least six months.

While in the founding affidavit, he had also challenged the decision of the respondent dated 13 January 2025 on the basis that the fact that the motor vehicle was above 10 years old is not a ground to deny him the suspension of duty as a returning resident, he abandoned this ground as it was not given as one of the reasons for denying him the rebate in the decision of 13 January 2025 which he impugned. The other ground that the decision of the station manager was a nullity because the Customs and Excise (General) Regulations 2001 (SI 154 of 2001) does not contain s 9NO was also abandoned by counsel for the applicant at the hearing. The applicant sought that the respondent's decision of 13 January 2025 be set aside as morefully set out in the draft order.

In its opposing affidavit, the respondent first raised a point *in limine* that the application was fatally defective for non-compliance with rule 62(2) of the High Court Rules, 2021. The preliminary point, however, was abandoned at the hearing.

On the merits, it was contended that the Commissioner exercised his discretion properly, as the applicant failed to prove that he had paid the vehicle's full purchase price and, therefore, owned it for at least six months before arriving in the country. It was further contended that the vehicle was sold on 10 February 2024 for £1,750, as per the submitted invoice, and that the invoice did not mention any storage charges of £50, as alleged. The bank statements submitted did not establish that the sum of £1,750 was paid in full, nor did they show any payment of £50 for storage charges. When he submitted his application, he declared that he had paid cash for the motor vehicle and for storage. In the absence of proof of payment of the full purchase price by 23 February 2024, as alleged, the UK registration book for the vehicle showed that ownership only passed to the applicant on 10 April 2024, although he claims to have bought it on 10 February 2024.

It was further averred that the period from 10 April 2024 to 15 September 2024, when the applicant was accepted as a returning resident, was less than the six months required by law. The respondent also contended that the applicant was accepted as a returning resident by the Department of Immigration on 15 September 2024 and that it is unfathomable how he could decide to return permanently to Zimbabwe on 24 October 2024 when he was already in the country. It was further pleaded that the vehicle could not be cleared because the applicant had not owned it for at least six months from the date he was accepted as a returning resident in Zimbabwe. That the payments on the bank statements could have been for something else, since upon interview at Kazungula Border Post, he had stated that he paid cash for the motor vehicle and the storage charges. He did not produce any proof of such cash payments. The respondent prayed for the dismissal of the application with costs on a punitive scale.

In his answering affidavit, the applicant maintained that he satisfied the requirement of s 9NO (3) (a) of the Regulations, as he had owned the vehicle for more than six months before his arrival on 15 September 2024. He insisted that he acquired ownership on 10 February 2024, not on 10 April 2024, when the registration book was changed into his name.

While in the heads of argument, the respondent had raised another point *in limine* that the application was fatally defective for not being in Form No. 23, as it called the respondent to file a Notice of Opposition in Form No. 29A, Mr Marange abandoned this point at the hearing.

SUBMISSIONS BY THE PARTIES

Mr *Tembani*, for the applicant, argued that the application before the court was for review of the respondent's decision dated 13 January 2025. Counsel argued that the decision was unreasonable, unlawful and unfair. He abided by the submissions filed of record. Counsel argued further that it was the respondent's contention that the applicant did not qualify for the immigrant's rebate on the basis that he had not owned the vehicle for a minimum period of six months at the time of his arrival in Zimbabwe. It was further argued that the respondent contended that the vehicle was registered in the applicant's name on 10 April 2024 and that the vehicle was not fully paid for on 23 February 2024.

Counsel argued that, at p 12 of the record, there is a sales receipt clearly indicating that the vehicle was fully paid for on 23 February 2024 in the total amount of £1,750. He also argued that the receipt clearly states that there was £50 in storage fees for the period from 7 to 23 February 2024. This, on its own, clearly demonstrates that the vehicle was fully paid for on 23 February 2024. Counsel further referred to p 21 of the record, the bank statements filed by the applicant in support of the application for a rebate. He stated that in column 5 from the bottom of that page is the £50 reflected on the receipt on p 12, being the cost of 2 weeks' storage of the vehicle. The £50 was not paid in cash, as alleged by the respondent; it was paid by transfer directly to the party storing the vehicle, who happened to be the owner.

Mr *Tembani* also submitted that p 24 of the record is the letter from the car sale explaining the issue of storage charges and the £50 cost. Counsel argued that this clearly shows that, from the time the vehicle was fully paid for on 23 February 2024, more than six months had lapsed before the date of his arrival in Zimbabwe. He further argued that the vehicle registration certificate from the United Kingdom filed by the respondents clearly states that the vehicle was acquired on 10 February 2024, and that this was the day the transaction was entered into. When the court enquired on which date he acquired ownership in the circumstances, counsel argued that he acquired ownership on the date of the delivery of the vehicle on 23 February 2024. I

hasten to state that this position was never pleaded in the founding affidavit. It is trite that an application stands or falls on its founding affidavit. See *Cabs* v *Finormagg Consultancy (Pvt) Ltd* SC 56/22.

Counsel further argued that a motor vehicle is a movable property, and as per case law, transfer of ownership of movable property is effected by the delivery of the property. See *Mapila* v *ZIMRA* HH 333/25, where it was stated that transfer in respect of movables is effected by delivery of the movable property. If we calculate that from 23 February to 15 September 2024, the total period is six months and 23 days. Counsel argued that, as at p 37 of the vehicle registration book, the actual change of ownership was effected in April 2024, but we cannot accept that date on its face value alone, since that document clearly states that it is not proof of ownership.

Per contra, Mr *Marange*, for the respondent, argued that p 11 of the record, which is the invoice, was stamped by the Notary Public on 7 April 2025. This document, he submitted, was not presented to the respondent, as well as that at p 17. The decision the applicant sought to be reviewed was passed in January 2025, so it was unfathomable how it could be submitted that these documents had been presented to the respondent. Counsel further argued that the document at p 24 of the record, which is the letter from the car sale, was not dated by the author; the notary public inserted the date. Counsel further argued that when the applicant presented himself at the Kazungula Border Post, he was interviewed by the officers of the respondent, and that this document was not presented to them. In the document at pp 43-44, the applicant was asked how the vehicle was paid for, and he responded that it was paid in cash.

Mr *Marange* went on to argue that the date on the interview sheet predates the founding affidavit. He further argued that p 20 is a transaction of £500 and another one which says £500. At p 11 and 12, the name of the car sale, Grey Wolf Auto is shown. Presented with such evidence, which is replete with so many inconsistencies, the decision of the respondent cannot be impugned. Counsel argued that the founding affidavit states that payment for the purchase of the vehicle was made through bank transfers, but the same applicant, on 23 November 2024, told the respondent that payment was made in cash.

It was further submitted that the applicant failed to establish the threshold of an application of this nature. He referred to the case of *Dombodzvuku* v *Sithole* HH 174/04 on the

requirements for a decision to be reviewed and that the applicant failed to meet that threshold. Counsel argued that the applicant owned the vehicle for five months, from April to September 2024, which did not meet the six-month threshold. Counsel further abided by the papers filed of record and prayed for the dismissal of the application with costs.

In reply, Mr *Tembani* abandoned the ground appearing in para 9.4 of the founding affidavit regarding the non-existence of s 9NO of the Customs Regulations. Counsel argued that the only document not submitted was the letter from the car sale, and p 46 of the record shows the documents produced during the interview. It was also submitted that the point that the vehicle was paid for in cash was made in the context of his stay in the United Kingdom, as that was the money that he had under the circumstances.

ISSUE FOR DETERMINATION

Whether or not the respondent's decision was grossly unreasonable, unlawful and/or unfair.

THE LAW

The law is clear that an administrative authority has a legal duty to act lawfully, reasonably, and in a manner that is procedurally and substantively fair. Thus, s 3(1) (a) of Administrative Justice Act provides as follows:

> "**3. Duty of administrative authority**
>
> (1) An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall—
>
> (a) act lawfully, reasonably and in a fair manner; …"

Any person aggrieved by the failure of an administrative authority to act in terms of s 3 of the Administrative Justice Act is entitled to approach this court for appropriate relief in terms of s 4(1). The principle of administrative justice was further explained in *Joubert Crushers and Transport (Pvt) Ltd* v *Zimbabwe Revenue Authority* HH 757/18, where the court stated that:

> "The court also exercised its mind on the question posed. It brings the court to the pertinent issue of the exercise of official power by administrative authorities. As MATHONSI J stated in *Telecel Zimbabwe (Pvt) Ltd* v *Potraz and Others* 2015(1) ZLR 651(H);

> The concept of administrative justice is now embedded in our constitution. It provides the skeletal infrastructure within which official power of all sorts affecting individuals must be exercised. The elements are:
>
> 1. Lawfulness in that official decisions must be authorised by statute, prerogative or the Constitution.
> 2. Rationality in that official decisions must comply with the logical framework created by the grant of power under which they are made.
> 3. Consistency in that official decisions must apply legal rules to all those to whom the rules apply.
> 4. Fairness in that official decisions should be arrived at fairly, that is impartially in fact and appearance giving the affected persons an opportunity to be heard.
> 5. Good faith in making of decisions in that the official must make the decision honestly and with conscientious attention to the task at hand having regard to how the decision affects those involved."

This court is mindful that, when reviewing the decision of an administrative authority, it must guard against usurping that authority's functions. The court can interfere with an administrative decision only if it is shown to be unlawful, grossly unreasonable, and unfair. In *Affretair (Pvt) Ltd & Anor* v *MK Airlines (Pvt) Ltd* 1996 (2) ZLR 15 (S) at p 22, MCNALLY JA stated as follows:

> "The duty of the courts is not to dismiss the authority and take over its functions, but to ensure, as far as humanly and legally possible, that it carries out its functions fairly and transparently."

ANALYSIS AND DETERMINATION

I must state that when considering an application of this nature, the court must concern itself with the question of whether the administrative authority committed a gross irregularity. The court must review the decision by considering the facts and evidence presented to the administrative authority. Any evidence which the applicant sought to place before this court for the first time cannot be used as a basis to impugn the decision of the respondent. There is no dispute, as shown at p 46 of the record, that the only documents which he placed before the respondent when applying for the rebate were recorded as "Passports, Bank Statements, Payslips, vehicle registration book, vehicle invoice". Clearly, the alleged receipt for the payments at p 12 and the letter from the car sale, Grey Wolf Auto, notarised on 7 April 2025, well after the final decision was made by the respondent, cannot assist the applicant in establishing the grounds invoked to impugn the respondent's decision of 13 January 2025.

It is important to note that the decision in question also concerns the exercise of a discretion by the Commissioner. Thus, s 9NO (3) of the Regulations provides as follows:

> "(3) Subject to this section, a suspension of duty **may** be granted in respect of motor vehicles, imported by an immigrant if such motor vehicles—
>
> (a) are **shown to the satisfaction of the Commissioner** to have been owned by such immigrant at least six months before the time of his or her arrival and at the time of their importation ..." (*my emphasis*)

The courts generally are slow to interfere with the exercise of a discretion unless it is shown that the discretion was exercised improperly or unreasonably so as to vitiate the decision. This position was affirmed by MAKARAU JA (as she then was) in *Rio Zim (Pvt) Ltd* v *Trust Bank Corporation Ltd* SC 87/21 at pp 6-7, where she held that:

> "As stated above, the appellant argues that the court *a quo* determined the merits of the intended application. It did not. It merely assessed the prospects of success of the intended application. In doing so, it may have gone further than was necessary and further than most courts would. Whilst this is not ideal, it is not an irregular exercise of discretion. In consequence, it does not trigger the review jurisdiction of this court. **The position is now settled that where a lower court exercises a discretion, the higher court cannot interfere unless the lower court has committed one or more of the four cardinal errors. These are, acting upon a wrong principle, allowing extraneous or irrelevant matters to guide or affect it, mistaking the facts or failing to take into account some relevant consideration**. (*Barros & Anor* v *Chimponda* 1999 (1) ZLR 58 (S))." (*my emphasis*)

I must consider the evidence that was placed before the Commissioner and analyse whether the respondent's decision, made by the Commissioner in the exercise of his discretion under s 9NO (3) of the Regulations, was unlawful, grossly unreasonable, or unfair. It must be shown, therefore, that the applicant established his ownership of the vehicle for a period of at least six months before his time of arrival and at the time of importation of the vehicle. The applicant arrived and declared his status at the Kazungula Border Post on 15 September 2024. He bore the *onus* of establishing that he owned the motor vehicle in question and that ownership subsisted for the prescribed period to qualify for the immigrant rebate in question. In establishing that ownership, the peremptory provisions set out in s 9NO (2) must be resorted to, and they state as follows:

> "(2) For the purposes of this section, motor vehicles **shall** be treated as being owned by an immigrant **only if such motor vehicle were in physical existence and fully paid for by the immigrant at least six months before the time of his or her arrival**." (*my emphasis*)

It is trite that where the language used in a statute is clear and unambiguous, words must be given their ordinary grammatical meaning unless to do so would lead to an absurdity. See *Tapedza & Ors* v *Zimbabwe Energy Regulatory Authority & Anor* SC 30/20 at p 4, where HLATSHWAYO JA (as he then was) stated as follows:

> "It is an established principle of law that when interpreting a statute, the first cannon of interpretation to be applied is the golden rule of interpretation. This rule is to the effect that where the language used in a statute is plain and unambiguous, it should be given its ordinary meaning unless doing so would lead to some absurdity or inconsistency with the intention of the legislature. A provision of a statute should be given a meaning which is consistent with the context in which it is found."

What is clear from the provisions of s 9NO (2) of SI 10/2022, which is also worded in peremptory language, is that for the applicant to be treated as the owner of the motor vehicle, it must be shown that the vehicle was in physical existence and that he had fully paid for it at least six months before the time of his arrival. The ordinary meaning of the words must be given effect. There is no absurdity. In *casu*, that the motor vehicle in question was in physical existence was common cause. The dispute was whether the applicant had fully paid for the vehicle at least six months before 15 September 2024, so as to be said to have acquired ownership thereof by virtue of the provisions of s 9NO(2).

There is no doubt that the applicant presented the invoice for the motor vehicle before the respondent. The copy of the invoice thereof is the same as the one certified on 7 April 2025 at p 11. While that certified copy may not be the one presented, a similar copy to the said document was the invoice the applicant produced as part of his application. The invoice clearly states that the vehicle's purchase price is "TOTAL £1,750.00". There is nowhere in the questionnaire completed by the applicant at p 45 and in the interviews conducted by the respondent's officials, that it is recorded that the said amount also constituted the alleged £50 storage charges or costs. The invoice itself did not state that any portion of the total payable included storage. Reasonably and is normally commercial practice, if there were any further charges in addition to the price of the vehicle itself, the invoice would have stated this.

The receipt at p 12, certified after the respondent's decision, was not placed before the Commissioner. The same applies to the letter at p 24 from Grey Wolf Auto. Clearly, the production of these documents before this court was done as an afterthought. If they were meant

to serve as the basis for discrediting the respondent's decision, then the applicant was ill-advised. He could not attack the decision made on 13 January 2025 by relying on documentation that was not placed before the respondent. The bank statements he produced only show deductions towards Grey Wolf Auto Ltd, totalling £1,700, as correctly noted by the respondent. There was no further evidence adduced by the applicant, nor any explanation, as to the payment of the balance of the total invoice of £50 as at 23 February 2024. While there is a payment of £50 stated as "Online Transaction Susan Bunu Tana VIA MOBILE" on 23 February 2024, there was no attempt to explain that as a payment towards the invoice or the purchase of the motor vehicle before the respondent or the Commissioner. The attempt to explain that transaction now, with a receipt and the letter from Grey Wolf Auto, was made only after the decision of 13 January 2025 and before this court. That explanation cannot in any way assist the applicant's cause, as that evidence was not adduced before the administrative authority.

The administrative authority cannot be faulted for making a decision based on the evidence before it. The correct approach is for the court to consider the totality of the evidence placed before the administrative authority to determine whether the decision was grossly unreasonable. This was restated in *Tenesi* v *Public Service Commission* 1996 (1) ZLR 208 (H) at 210 G-H, where MALABA J (as he then was) quoted the words of SMITH J (as he then was) in *Mhlanga* v *Murands & Ors* HH 136/92, where it was held that:

> "**The High Court**, in the exercise of its review powers over the determination of quasi-judicial bodies, **must place itself in the position of the tribunal** whose determination is being reviewed and assess the reasonableness of the determination **on the basis of the evidence actually put before the tribunal**". (*my emphasis*)

The Commissioner was alive to the evidence before him as he made the following findings in his decision dated 13 January 2025:

> "Reference is made to your letter dated 5 December 2024 concerning the above-mentioned matter.
>
> I have carefully considered your appeal, and I have found no reason to vary the decision by the Regional Manager, **as no additional information was submitted to warrant a variance**.
>
> **You submitted an invoice of £l, 750.00 and your bank statement as proof of payment of this amount.**
>
> The bank statement however, is showing payments amounting to only £l, 700.00. This means the car had not been fully paid for by 23/02/2024, as you claim. **There was a balance of £50.00 that is not on the bank statement and you are also silent about.** Hence the date on the registration

> book of 10/04/2024 becomes the date of ownership of the vehicle and that's 5 months and 5 days from your date of arrival 15 September 2024. According to 9NO. (2) Of SI 10 of 2022 motor vehicles are treated as being owned by an immigrant only if such motor vehicles were in physical existence and fully paid for by the immigrant at least six months before the time of his or her arrival.
>
> I regret to advise that your vehicle cannot be admitted under suspension of duty as you did not own it for the required period." (*my emphasis*)

The decision of the respondent, surely in the circumstances, that the applicant failed to show that he fully paid the purchase price by 23 February 2024, as alleged, or at least 6 months before his time of arrival, cannot be said to be grossly unreasonable. Indeed, the bank statements did not show that the full sum of £1,750 was paid to Grey Wolf Auto for the vehicle. He did not produce the alleged sales receipt and the letter from Grey Wolf Auto, which he produced before me. No further evidence in relation to the payment of the invoice was before the Commissioner, save for the invoice and the bank statements. The Commissioner properly exercised his discretion to decline to grant the rebate or suspension of duty in terms of s 9NO (3) of the Regulations. The decision was, therefore, a lawful exercise of his statutory authority. It cannot be said to be unlawful.

No unfairness arises as the applicant was also given the opportunity to be heard and present evidence. The Commissioner lamented the lack of evidence that the balance of the purchase price, in the sum of £50, as presented on the invoice, was paid before the date of the change of the registration book on 10 April 2024. There being no other such evidence, the Commissioner could only treat the date of change of the vehicle registration into the applicant's name, namely 10 April 2024, as the date on which he became the owner. Calculating from that date, 10 April 2024, to 15 September 2024, the time of his arrival, clearly, six months had not lapsed. He was thus not legally entitled to that rebate and had to pay duty in terms of the law on the importation of the motor vehicle into the country.

The applicant's case was further compounded by his lack of candour with the respondent. There have been many inconsistencies in his testimony, even before me. The applicant averred that he paid the full purchase price via bank transfers, including the £50 storage cost. He presented an invoice for £1,750, and it does not categorise any amount as storage costs. That he paid the purchase price through bank transfers is also not what he declared to the respondent. At pp 43-44 is the Rebate Questionnaire he duly completed. At p 44, when answering the question

"If importing a vehicle, how was it paid for?" he answered boldly: "CASH". The further question was "Who paid for the vehicle?" and he said "SELF". The said questionnaire is very clear that he signed it on 23 November 2024, certifying that he had presented correct information to the respondent, as above his signature, it is stated:

> "I certify … that **the above declaration is correct in all respect**. **I understand that there are serious repercussions for giving incorrect information**." (*my emphasis*)

Even the interview sheets from pp 46-46 show that he declared to the respondent's officials that he had paid cash for the motor vehicle as well as the storage costs. He, however, failed to produce any cash receipts for such payments or provide any proof of the cash payments he made towards the purchase of the vehicle. The respondent, however, accepted even to consider the bank statements even though he had declared that he had paid in cash. Mr *Tembani* was at pains seeking to explain this discrepancy. His explanation was rather an insult to the intelligence of the court, as he sought to claim that the applicant referred to cash payment as payment made through the bank shown on the bank statements. But surely that could not be taken to be cash payments. This level of dishonesty is staggering to say the least.

At one time, the applicant claimed he had concluded an instalment sale and that he acquired ownership on 10 February 2024. He could not even produce proof of such an instalment sale before the court. He then turned and sought to split the invoiced sum into two parts, namely £1,700 for the price and £50 for storage costs, but did not put the respondent into his confidence by giving a full and candid account of the transaction. He further sought to bring new documents, certified in April 2025, well after the decision he impugns before this court, to explain how he paid the purchase price. This dishonesty clearly shows that the applicant was not someone the authority could trust. It correctly rejected his evidence that he had paid the full purchase price of the vehicle at least six months before his arrival in the country. It is trite that a party must be candid with the court. Thus, in *S* v *S & Anor* HH 278/18 at p 5, the court commented as follows:

> "It also emerged during argument, that out of this the sum of ZAR50 999.05 due as at 8 March 2018 respondent has paid ZAR26 000.00 which the applicant again, had not disclosed. **The applicant ought to have been candid with the court. I cannot exercise my discretion in favour of the applicant who has not been candid."** (*my emphasis*)

Further, in *Matsika & Anor* v *Chingwena & Ors* SC 144/21, the law was restated as follows:

> "[26] **These examples of the 1st applicant's shenanigans portray him as a dishonest devious person who is prepared to twist the truth in order to advance his nefarious cause. In light of his deceitful character the learned judge *a quo* cannot be faulted for holding that the 1st respondent's cause was founded on lies** and fraudulent documents. That finding is amply supported by the evidence on record. For that reason, the learned judge *a quo's* reliance on the dictum of NDOU J in *Leader Tread Zimbabwe (Pvt) Ltd* v *Smith* [HB 131/03] is apt. In that case, the learned judge observed that:
>
> > "**It is trite that if a litigant has given false evidence his story will be discarded and the same adverse inference may be drawn as if he has not given evidence at all**. - see *Tumahole Bereng* v *R [1949] AC 253* and *South African Law of Evidence* IH Hoffman and DT Zeffert (3rd ed) at page 472, if he lies about a particular incident, the court may infer that there is something about it which he wishes to hide".
>
> [27] **This should really be the end of the matter as the 1st applicant has proven to be an unworthy dishonest litigant**. For the sake of completeness, I, however, feel constrained to briefly deal with his other complaint that after finding that the 1st applicant had no *locus standi* the court *a quo* ought to have struck the matter off the roll instead of dismissing it." (*my emphasis*)

The Supreme Court in *Chimbandi* v *Mabel Canvas (Pvt) Ltd* SC 68/22 held as follows, in relation a litigant who is dishonest or lied to the court:

> "[17] **At the onset of argument counsel for the appellant made the inescapable fatal admission that appellant was in fact dishonest to the court *a quo* when she denied liability to the respondent. What this means is that the appellant's entire pleadings are prone to being founded on lies and deceit.**
>
> [18] Given the appellant's admitted devious and unworthy demeanour, counsel for the appellant was unable to give any coherent answer as to why the court *a quo* should have believed her on any other aspect of her defence. **It is trite that a litigant who is shown to have told a lie in court may also be considered unworthy of belief on any other contentious issues. The court *a quo's* finding in this respect is beyond reproach.**" (*my emphasis*)

See also *Anabus Services (Pvt) Ltd* v *Minister of Health & Ors* HB 88/03.

The above principles would apply with full force in any application for a rebate before the respondent. The requirement, as also stated in the questionnaire, in which the applicant signed a declaration that the information he provided was correct, required the applicant to be honest and candid with the administrative authority. The decision, therefore, to deny him the rebate in the circumstances cannot be impeached.

The applicant was also not candid with this court. In para 5 of the founding affidavit, the applicant averred that the storage fees were paid directly to the owner of the vehicle, one Susan

Bunu Tana; however, the sale receipt on p 12 shows that the money was paid to Grey Wolf Auto Limited. However, as I have alluded to earlier, the sales receipt and the further explanation, including the alleged undated letter from Grey Wolf Auto at p 24, were never placed before the respondent. The claim that the respondent's decision was manifestly harsh, unreasonable, unlawful and/or unfair is clearly devoid of any merit. There is no basis, therefore, for the court to interfere with the administrative decision made by the respondent on 13 January 2025.

DISPOSITION

I find the application before me to be hopelessly without merit. The applicant has failed to establish that the respondent's decision was grossly unreasonable, unlawful and/or manifestly harsh or excessive. With the evidence before the respondent and the dishonesty shown by the applicant, this court is not moved to accept that there is any legal basis to set aside the respondent's decision for violating s 3(1) of the Administrative Justice Act. The Commissioner exercised his discretion properly and reasonably. The court will not interfere with the discretion properly exercised in accordance with the law. The grounds upon which this application was based were utterly unsustainable. The application cannot succeed.

It is the general rule that costs follow the event, and there is no reason for me to depart from that rule. The respondent prayed for costs on a legal practitioner and client scale. Such costs are granted only in exceptional circumstances. There are no exceptional circumstances justifying punitive costs. While the application was without merit, it does not fall into the category of cases that can be taken as an abuse of court process. Costs on a legal practitioner and client scale cannot be granted merely because a party has requested them. Mr *Marange*, in his address before the court, did not even justify why such costs were being sought. I, therefore, find only costs on the ordinary scale to be warranted.

Accordingly, it is ordered as follows:

"1. The application be and is hereby dismissed with costs."

DEMBURE J: ……

Tembani | Gomo Law Practice, applicant's legal practitioners
Legal Services Division, Zimbabwe Revenue Authority, respondent's legal practitioners